



Questionnaire: MicroStar - Konvoy

MN-30003

Deadline to respond: 5:00pm AEST on 1 July 2026

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing Kegstar Pty Limited's (**Kegstar**) (a wholly owned subsidiary of MicroStar Logistics LLC's (**MicroStar**)) proposed acquisition of certain assets of Konvoy Holdings Pty Ltd (Receivers and Managers Appointed) (Subject to Deed of Company Arrangement) (**Konvoy**) (the **Acquisition**).

For further information about the ACCC's assessment of the Acquisition, see the ACCC's [Acquisitions Register](#).

On 17 June 2026, Kegstar made a remedy offer to the ACCC of a court-enforceable undertaking pursuant to s87B of the *Competition and Consumer Act 2010* (the **Act**), which places obligations on Kegstar to not enforce exclusivity provisions for a period of time, offer existing Konvoy customers Kegstar contracts on specified terms if requested, provide customers the option to purchase kegs in certain circumstances, and incorporate key performance indicators into all Customer Contracts (the **remedy offer**).

The ACCC is assessing Kegstar's remedy offer and is seeking information and views from stakeholders on the offer. A summary of the remedy offer and copy of Kegstar's proposed s87B undertaking is available at the ACCC's [Acquisitions Register](#).

The ACCC invites you to provide submissions or information in response to the questions below by **5:00pm on 1 July 2026** via email to mergers@acc.gov.au with a copy to mergersru@acc.gov.au, with the title *Submission re: MicroStar - Konvoy - Remedy offer*. The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@acc.gov.au with a copy to mergersru@acc.gov.au, with the title *Request for call re: MicroStar - Konvoy - Remedy offer*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's

[confidentiality claims template](#)). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

Questions about the remedy offer

If you have not previously provided a submission to the ACCC on this matter, please:

1. Provide a brief description of your business or organisation, including any commercial relationships with MicroStar, Kegstar, or Konvoy.

2. Outline any concerns you have regarding the impact of the Acquisition on competition.

The remedy offer

3. Describe the extent to which Kegstar's remedy offer would address any concerns you have in relation to the Acquisition

4. Provide any views you have on whether a period of 3 years is an appropriate duration for the majority of obligations under Kegstar's remedy offer.

5. Provide any additional information or comments you consider relevant to the ACCC's consideration of the remedy offer.

Non-enforcement of exclusivity in Kegstar contracts

6. Provide your view on whether the obligations on Kegstar to not include or enforce an exclusivity provision in agreements with customers or suppliers would address your competition concerns in relation to the Acquisition.

7. Provide your views on whether a period of 3 years to not include or enforce the exclusivity provisions is appropriate.

Konvoy Customer options

8. Under the remedy offer, Kegstar must offer to enter into a contract for Kegstar services, if an existing Konvoy Customer requests a contract within 3 months from Completion – provide your view on whether this is an acceptable mechanism and timeframe. Please also provide any other views on the Konvoy Customer options.

Customer option to purchase kegs

9. Provide your view on whether you are likely to purchase kegs from Kegstar, if given the option, and if this could replace the loss of competition from Konvoy leaving the market. Please also provide any other views on the Customer option to purchase kegs.

Service level commitment

10. Provide your view on whether the inclusion of a termination right if key performance indicators are not met into Customer Contracts for Kegstar's services would address any competition concerns from the Acquisition.

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of

the obligation to treat the information as confidential, and

- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's [interim merger process guidelines](#).